

**THE GAZETTE OF INDIA
EXTRAORDINARY
PART-III-SECTION 4
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NEW DELHI, March 31, 2008
SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION
Mumbai, the 31st March, 2008**

**Notification under clause (u) of sub-section (1) of section 2 of the
Securitisation and Reconstruction of Financial Assets and Enforcement
of Security Interest Act, 2002**

F. No.11/LC/GN/2008/21670. WHEREAS it has been decided that-

- a. systemically important non-deposit taking non-banking financial companies (NBFCs) with asset size of one hundred crore rupees and above; and
- b. other non-deposit taking NBFCs which have asset size of fifty crore rupees and above and "Capital to Risk – weighted Assets Ratio" (CRAR) of 10% as applicable to non-deposit taking NBFCs as per the last audited balance sheet,

shall be considered for specifying a qualified institutional buyer for the purposes of the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 (54 of 2002).

NOW THEREFORE, in exercise of powers conferred by clause (u) of sub-section (1) of section 2 of the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 (hereinafter referred to as 'the SARFAESI Act') the Securities and Exchange Board of India hereby specifies that the non-banking financial companies registered under section 45-IA of the Reserve Bank of India Act, 1934 (2 of 1934) and satisfying the above conditions shall be qualified institutional buyers for the purposes of the SARFAESI Act.

**C. B. BHAVE
CHAIRMAN
SECURITIES AND EXCHANGE BOARD OF INDIA**

[ADVT.III/IV/69ZB/2008/Extty.]